

Kapur, J. 1. This appeal by special leave is directed against the judgment and order of the High Court of Judicature at Madras. The appellant is ... in support of the contention several cases were relied upon,

6. In our opinion on the findings as given the payment in dispute does not ... it did not affect the quantum of salary of the recipient.

The two cases strongly relied upon by the appellant Company were J. P. Hancock v. General Reversionary and Investment Company Ltd. (1919) ... that was the ground for holding the amount to be a proper deduction.

7. In our opinion the proper test to apply in this case is ... therefore the amounts claimed is not a deductible item under S. 10 (2)(xv).